

CHAPTER 13.

An Act to amend and extend the Parliament and Local Elections Act, 1916. [26th April 1917.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. Subsection (1) of section one of the Parliament and Registration Act, 1916, shall have effect as if six years and ten months were substituted therein for five years and eight months ; and section one of the Parliament and Local Elections Act, 1916, is hereby repealed.

2. For the purpose of postponing local elections, and making provision with respect to the revision of jurors' lists in Ireland, section two of the Parliament and Local Elections Act, 1916, and the enactments referred to therein, and section four of the Elections and Registration Act, 1915, as set out in a consolidated form, with the necessary modifications, in the Schedule to this Act, shall be deemed to be incorporated in this Act.

3. This Act may be cited as the Parliament and Local Elections Act, 1917.

SCHEDULE.

**SECTION 2 OF THE PARLIAMENT AND LOCAL ELECTIONS ACT,
1916, AND THE ENACTMENTS REFERRED TO THEREIN,
AND SECTION 4 OF THE ELECTIONS AND
REGISTRATION ACT, 1915, IN A CONSOLIDATED FORM.**

(1) The next statutory elections of county and borough councillors, district councillors, guardians, and parish councillors, and of members of school boards in Scotland, shall, subject to the limitation hereinafter contained, be postponed, or, in the case of elections already postponed under the Elections and Registration Act, 1915, or the Parliament and Local Elections Act, 1916, further postponed, for a year ; and the term of office of the existing councillors, guardians, and members shall accordingly be extended, or further extended, by one year.

This provision shall apply only where the next statutory election (whether a postponed election or not) would take place before the thirtieth day of November nineteen hundred and seventeen, or in Scotland before the twentieth day of December nineteen hundred and seventeen.

(2) The provisions of this Schedule may be applied, if necessary, to the election, appointment, or co-optation of the chairman, vice-chairman, elective auditors, or members of any kind of local or other body or committee thereof, by order of the Local Government Board as respects local bodies, and by order of the appropriate Government Department as

Further pro-
longation of
present Parlia-
ment.

5 & 6 Geo. 5.

c. 100.

6 & 7 Geo. 5.

c. 44.

Further post-
ponement of
local elections.

5 & 6 Geo. 5.

c. 76.

Short title.

respects any other bodies, and may be so applied with the necessary modifications, and either generally as regards all bodies of any particular kind, or specially as regards any particular body or bodies.

(3) Any provisions of any Act or Order or regulations relating to any such councillors or guardians, or to any such chairman, vice-chairman, or member of a local or other body, shall be construed as if they were modified in such a manner as to give effect to the provisions of this Schedule, and the Local Government Board as respects councillors, guardians, or local bodies, and the appropriate Government Department as respects any other bodies, if any question arises, may by order specify the actual modification which is to be made in pursuance of this Schedule.

(4) If any question arises as to the appropriate Government Department by which an order should be made under this section, that question shall be determined by the Treasury, and their decision on the matter shall be conclusive for all purposes.

(5) Section thirty-six of the Municipal Corporations Act, 1882, and any other enactment making the payment of a fine a condition of resigning any office, shall not have effect so as to require the payment of a fine in the case of a councillor, guardian, or member or elective officer of a local or other body who resigns any office after the date on which his term of office would, but for the provisions of this Schedule, have expired.

(6) Where at the date on which, but for the provisions of this Schedule, the next statutory election would take place of the members of any council, board of guardians, body, or committee to which this Schedule applies, or may be applied, there is a vacancy amongst those members, that vacancy may be filled by means of the choice by the council, body, or committee, of a person to fill the vacancy, and any person chosen to fill the vacancy shall hold office in the same manner in all respects as though his predecessor had remained in office until the date when the vacancy was filled.

(7) The Elections and Registration Act, 1915, shall be deemed to have had effect so as to extend by three years in all cases the term of office of an alderman of a municipal borough.

(8) For the purposes of this Schedule the expression "councillor" includes "alderman," the expression "borough" includes "metropolitan borough," the expression "statutory election" means an election to fill the place of councillors and guardians retiring on the expiration of their term of office, and the expression "existing councillors and guardians" means councillors and guardians who are in office at the time when the next retirement of councillors or guardians after the passing of this Act would, but for this Act, have taken place.

(9) In the application of this Schedule to Scotland, "the Secretary for Scotland" shall be substituted for "the Local Government Board," and "town council" and "town councillors" shall be substituted for "borough council" and "borough councillors" respectively.

Nothing in this Schedule shall operate to continue any councillor in the office of bailie beyond the date at which he would in ordinary course have retired as a councillor.

(10) In the application of this Schedule to Ireland "the Local Government Board for Ireland" shall be substituted for "the Local Government Board."

Courts shall be held in Ireland by county court judges or in the county of Dublin or the county of the city of Dublin by revising barristers

for the revision under the Juries (Ireland) Acts, 1871 to 1894, of jurors' lists in the present year, at such times (not later than the fifteenth day of November) and places as may be fixed by the Lord Chancellor of Ireland, notwithstanding that no courts are to be held in the present year for the revision of the register of parliamentary voters.

CHAPTER 14.

An Act to make provision with respect to the administrative expenses of the Statutory Committee and of Local and District Committees under the Naval and Military War Pensions, &c. Act, 1915; and for certain other purposes connected with Pensions and Allowances.

[17th May 1917.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Administrative
expenses of
local and dis-
trict commit-
tees.
5 & 6 Geo. 5,
c. 83.

1.—(1) The administrative expenses of any local committee, or of any sub-committee thereof, established under the Naval and Military War Pensions, &c. Act, 1915 (hereinafter referred to as the principal Act), to an amount not exceeding such approved estimate as is hereinafter mentioned, shall be defrayed by the council of the county, or borough, or urban district for whose area the local committee is established, and the administrative expenses of any district committee appointed under the principal Act shall be defrayed as part of the expenses of the local committee for the county in whose area the district is situate.

(2) Every local committee shall, at such times as the Local Government Board may direct, submit for approval to the council by which the administrative expenses of the committee are to be defrayed an estimate of the administrative expenses proposed to be incurred by the local committee for such period as the Board may direct, and may from time to time so submit supplementary estimates, and the council shall within such time as the Board may direct forward to the Board all such estimates together with an intimation of their approval or modified as they may think fit, and the Board shall consider all estimates so submitted, and shall, if and so far as they consider any such estimate reasonable, approve the estimate, and thereupon there shall be paid out of moneys provided by Parliament, at such times and in such manner as the Treasury may direct, sums equal in the aggregate to two-thirds of the expenses incurred not exceeding two-thirds of such estimate as so approved, and the sums so paid shall be paid to the council.